

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

X-----X

BROTHER V. CASH-BEY,

Plaintiff,

SUMMONS

- Against-

The basis of venue is:
Residence of Plaintiff

Plaintiff designates New York
County as the place of trial

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, PO ANDREW T. ALVARADO
(23931), PO SCOTT J. SMITH (10427), and
"JOHN DOE(s) 1-5, Whose names being fictitious,
the true names being unknown to plaintiff,
the persons being NYPD employees,

Defendants,

X-----X

To the above-named defendant(s):

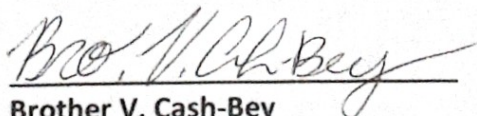
You are hereby summoned and required to serve upon plaintiff an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff selects NEW YORK county as the place of trial. The basis of the venue designated is on residence of the plaintiff.

Dated: NEW YORK, NEW YORK

February 14, 2022

Yours, etc.,



Brother V. Cash-Bey

Pro Se Litigant

79-81 MAIN STREET, # 1072

YONKERS, NEW YORK 10701

347-541-8019

Defendant addresses:

To:

CITY OF NEW YORK

100 Church Street

New York, N.Y. 10038

NEW YORK CITY POLICE DEPARTMENT

One Police Plaza

NEW YORK, NEW YORK 10007

Andrew T. Alvarado (NYPD Officer, Shield No. 23931)

Via 44th Precinct

2 east 169 street

Bronx, New York 10452

Scott J. Smith (NYPD Officer, shield No. 10427)

Via 44th Precinct

2 east 169 street

Bronx, New York 10452

John Doe, 1-5

Via 44th Precinct

2 east 169 street

Bronx, New York 10452

Upon your failure to appear, judgement will be taken against you by plaintiff in a sum of money exceeding the monetary jurisdictional limits of all lower courts, together with interest, cost and disbursements of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

X-----X

BROTHER V. CASH-BEY,

Plaintiff,

-Against-

COMPLAINT and JURY DEMAND

THE CITY OF NEW YORK, NEW YORK CITY

INDEX NO.:

POLICE DEPARTMENT, PO ANDREW T. ALVARADO

(Shield No. 23931), PO SCOTT J. SMITH

(Shield No.10427), and "JOHN DOE(s) 1-5,

Whose names being fictitious, the true names

being unknown to plaintiff, the persons being

NYPD employees,

Defendant,

X-----X

Plaintiff, *Brother V. Cash-Bey*, by and through on behalf of himself, respectfully shows and alleges as follows:

PRELIMINARY STATEMENT

1. The plaintiff, *Brother V. Cash-Bey* ("Cash-Bey" or "Plaintiff"), brings this civil rights action against the CITY of New York (the "CITY") based on and arising out of the wrongful acts and omissions of the CITY and the New York CITY Police Department ("NYPD"), including individual employees and agents of these offices, for violating his rights secured by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the U.S.A., the common Law and the Constitution of the State of New York.

PARTIES

2. Plaintiff, *Brother V. Cash-Bey* at all times herein is a citizen of the United States within the meaning of 8 USC § 1401(b) and a resident within the State of New York.

3. NYPD POLICE OFFICER *ANDREW T. ALVARADO*, Shield No. 23931, is and was at all times relevant herein, an office, employee, and agent of the New York City Police Department.

4. NYPD POLICE OFFICER *ANDREW T. ALVARADO*, Shield No. 23931, was at all times relevant herein, assigned to the NYPD 44th precinct.

5. NYPD POLICE OFFICER *ANDREW T. ALVARADO*, Shield No. 23931, is being sued in his individual and official capacity

6. NYPD POLICE OFFICER *Scott J. Smith*, Shield No. 10427, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. NYPD POLICE OFFICER *Scott J. Smith*, Shield No. 10427, was at all times relevant herein, assigned to the NYPD 44th precinct.

8. NYPD POLICE OFFICER *Scott J. Smith*, Shield No. 23931, is being sued in his individual and official capacity.

9. New York City Police Officers John Does No. 1-5 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officer John Does No. 1-5 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, constables, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, constables, employees, and agents of the New York City Police Department.

12. Defendant, CITY of New York (the "CITY") is a municipal corporation duly organized under the laws of the State of New York. At all times relevant hereto, the CITY, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters, including the appointment, training, supervision, and conduct of all NYPD personnel. In addition, at all relevant times, the CITY was responsible for enforcing the rules of the NYPD and for ensuring that NYPD personnel obey the laws of the United States and of the State of New York.

13. That at all times herein after mentioned, the Defendant, THE NEW YORK CITY POLICE DEPARTMENT, ["NYPD"], was and still is a department and/or agency of the CITY OF NEW YORK and operates under its supervision, management, and control and which is responsible for the appointment, training, supervision, promotion and discipline of police officers, detectives and supervisory police officers and detectives, including the individually named Defendants herein. Defendant, CITY as an employer of the individual Defendant officers is responsible for their wrongdoing under the doctrine of *respondeat superior*.

14. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim, on or about, February 17, 2021, with the New York City Office of the Comptroller.

15. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.

16. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New

York General Municipal Law.

17. This action has been commenced within one year and ninety days from the relevant accrual dates

STATEMENT OF FACTS

18. On November 28, 2020, at about 1:27 a.m., Plaintiff was stopped on east 161 Street and Sherman Avenue, Bronx, New York, by the defendant police officers who under information and belief violated NYPD P.G. 203-25(3)(4)(5) "Department policy prohibiting racial profiling and bias-based policing", and Section 14-151 of the New York City Administrative Code when they pulled Plaintiff over, unlawfully detained him and used force to search Plaintiff without probable cause, or any legal justification.

19. It was a (Thanksgiving) holiday weekend, Plaintiff departed from a family gathering at his sibling's abode, When on his way home.

20. ("Individuals may not be targeted for any enforcement action, including stops, because they are members of a racial or ethnic group that appears more frequently in local crime suspect data"), NYPD P.G.203-25(4).

21. While Plaintiff waited for a traffic light to change to green near the intersection of east 161 street and Sherman Avenue, He sees a car drive up (fast)and stop on the passenger side of the car He drove, When the traffic signal changed to green, Plaintiff moved forward into the intersection of east 161 Street and Sherman Avenue, He then noticed turret lights flash from said car.

22. Plaintiff is aware of the dangers police officers face when approaching a vehicle on the side of the road or street, so, Plaintiff immediately turned on his hazard lights, the BRONX Criminal Court Building was only few feet away, He pulled over into an open parking space next to it, He then turned on the interior lights and turned off the engine.

23. Plaintiff waited, but then suddenly, He heard a loud thump, Plaintiff thought the unmarked police car collided unto Him, However, when he turned around to check, only the defendant police officers stood near the bumper - they thumped the rear bumper, (except for the windshield) they struck all the windows on the car, they yelled *roll down the windows, roll the "F***ing windows down, open the door*, in fact, within that moment the defendant police officers attempted to open the car door. They did not approach Plaintiff in peace and upon information and belief, the defendant police officers used the NEW YORK Vehicle and Traffic Law as a disguise to intrude onto Plaintiff.

24. Scott J. Smith ("PO Smith") shield number 10427, stood on the driver side of the car Plaintiff drove, Andrew T. Alvarado ("PO Alvarado") shield number 23931 stood on the passenger side.

25. PO Alvarado hit the front and back passenger windows and pulled the handles to both front and rear passenger doors; He tried to open the car door before questioning.

26. Plaintiff lowered the front (driver) window, PO Smith asked Plaintiff for his driver license ("DL"), Plaintiff said: "sure".

27. Plaintiff grabbed his wallet from the mid console compartment, however, simultaneously, as he opened the wallet, PO

Alvarado pulled the handle to the front passenger door, as a result, Plaintiff flinched, the DL slipped out of the wallet and landed in between the driver's seat and the mid console.

28. When Plaintiff realized where the DL landed, He politely said to PO Smith: hold on let me get my DL, but PO Smith said: *forget the DL just step out of the car.*

29. Plaintiff said: *Why do I have to get out of the car, I do not want to get out of the car,*

30. PO Smith said: *if you don't get out, you're going to make things worse for yourself,*

31. Plaintiff said: *Alright, I am going to get out, but I do not consent to any searches.*

32. At no time relevant herein did plaintiff commit a crime, nor did the defendant police officers have probable cause, reasonable suspicion, or an objective reason to accuse Plaintiff of committing a crime or crime was afoot violating the law in any way.

33. That the Defendant police officers used measures more intrusive than necessary, they used a tactic, whereas they repeatedly accused Plaintiff of being angry or aggressive.

34. Both defendant police officers repeatedly said to Plaintiff during the encounter: *relax, calm down, why are you so angry,* yet, Plaintiff did not say anything disrespectful nor was he hostile toward them, rather, He was stunned by the manner of the encounter.

35. Plaintiff remained respectful to the defendant police officers, His conduct was not a threat to himself, the public, or to the defendant police officers, but against Plaintiff consent, whilst PO Alvarado performed a (*reasonable fear*) pat down frisk to Plaintiff's person, PO Alvarado put his hand inside of Plaintiff (lightweight) puffer jacket pocket.

36. Plaintiff said: *do not put your hands inside of my pockets that is a violation,*

37. PO Alvarado said: *Alright, no problem, I just had to check.*

38. Then, PO Alvarado said to PO Smith: *He's Clean,* meaning Plaintiff did not have contraband or anything unlawful on his person.

39. PO Smith said: *alright, we're almost done, you'll be on your way out of here soon, you just have to listen to us and answer a few questions.*

40. Po Smith asked Plaintiff in sum and substance *have you been drinking or smoking weed, where do you live, where are you coming from, where are you going,* Plaintiff answered all of PO Smith questions, but when PO Smith asked Plaintiff: *have you ever been arrested before,* Plaintiff did not answer; He remained silent and under the circumstances Plaintiff was not able to assert His right to remain silent.

41. PO Smith became very angry and said: *see, you just messed up, you should have answered the question.* Then PO Smith instructed PO Alvarado to walk Plaintiff to the rear bumper of Plaintiffs car.

42. Plaintiff did not feel free to leave.

43. Against Plaintiff consent, without probable cause or reasonable suspicion, PO Smith performed a complete inventory search on a public street, in front of the Bronx Criminal Court Building. When PO Alvarado confirmed Plaintiff was clean, PO Smith *reasonable fear* should have dispelled.

44. The only objects in plain view were: 1) An 8in x 5in replica of the Moorish flag, it is positioned on top of the dashboard on the driver's side. 2) An 8in x 5in replica of the flag of the U.S.A., it is positioned on top of the dashboard on the passenger side. 3) A pocket size copy of the Constitution of the U.S.A., it is placed underneath the instrument panel. 4) A bottle of water and 5) A face mask, both of these were placed on the passenger seat. *Do you believe under the same or similar circumstances a reasonable person would submit these mentioned items as evidence?*

45. PO Smith found Plaintiff DL during the inventory search; He gave it to PO Alvarado.

46. Plaintiff thanked PO Smith for finding the DL, because He presumed, they would run His DL information into the system to view its validity, therefore, conclude their encounter.

47. About 1 minute after PO Alvarado was in possession of the Plaintiffs DL, Plaintiff asked PO Alvarado to run His DL information into the system.

48. PO Alvarado seemed to oblige, however, about 3-5 minutes later, Plaintiff asked PO Alvarado, *is everything good, are we clear now, can I leave*, but PO Alvarado remained silent and kept possession of the Plaintiff DL.

49. Around that point, a NYPD police van pulled up and double parked about 10-15 feet away from (the rear bumper) where Plaintiff and PO Alvarado stood.

50. PO Smith completed an inventory search of the car in front of the Bronx Criminal Court Building. (*"A valid inventory search is not done to detect crime or to serve criminal prosecutions, but for quite different reasons: (1) to protect the owner's property while it is in police custody; (2) to protect the police against spurious claims of lost or stolen property; and (3) to protect the police from potential danger."* (*United States v Zimmerman*, 480 F Supp 3d 446 [EDNY 2020])) (see also *United States v Lopez*, 547 F 3d 364 [2d Cir 2008]).

51. PO Smith walked to the rear bumper where PO Alvarado and Plaintiff stood, PO Smith said: *"our investigation is almost over, you will be free go home soon, you just have to listen to us"*.

52. PO Smith said in sum and substance: *give us the key to the car*,

53. Plaintiff said: *no, I do not consent, I do not want to give y'all the car key*,

54. PO Smith said in sum and substance: *you're making it worse just give us the car key*,

55. Plaintiff said: *no, I do not consent, I am not going to do that*.

56. PO Smith became very upset, He ordered PO Alvarado to take the car key from Plaintiff.

57. PO Alvarado said: *we're asking for the car key, so you don't drive off while we run your DL information into the system.*

58. PO Alvarado, under information and belief, used a deceitful tactic, The DL been in his possession; He already entered the DL information into the system whilst PO Smith searched the car.

59. Plaintiff said: *I do not consent; I do not want to give you the key to the car* - PO Alvarado reacted with fury.

60. PO Alvarado said: *see, you're not listening; we could have done this the easy way.* Then, PO Alvarado grabbed both of Plaintiff wrists and applied pressure by squeezing them very tight, injuring Plaintiff.

61. PO Alvarado used force and a intimidating facial expression when he said to Plaintiff: *don't move, stand still*, he then took the car key out of Plaintiff pants pocket

62. Plaintiff said: *I do not consent, this is a violation, you're violating.*

63. PO Alvarado said: *"it's alright, this is all legal, its being recorded"*.

64. No NYPD police officer who sat in the above-mentioned police van intervene to help Plaintiff.

65. PO Alvarado confirmed the car key was in his possession to PO Smith.

66. PO Smith commanded Plaintiff to sit back in the car. PO Smith stood by the driver's side window while PO Alvarado searched the car trunk; Plaintiff personal effects was in the car trunk and PO Alvarado maliciously rummaged through it.

67. PO Alvarado minus consent searched the car trunk, Plaintiff could not believe what was happening, the defendant police officers acted like outlaws, Plaintiff said to PO Smith - *y'all cannot do this -this is a violation - I do not consent.*

68. PO Smith smirked, shrugged his shoulders, and said - *it's all legal, it's being recorded.*

69. PO Alvarado informed PO Smith there was no contraband in the trunk after He searched it against Plaintiff's will.

70. Plaintiff did not reach to lift his phone to record for He feared PO Smith would discharge his weapon.

71. PO Smith gave Plaintiff back his DL and car key. The Defendant police officers told Plaintiff that their need for the car key is prevent plaintiff from driving away while they run the DL information into system -- but they did not run the DL information into the system after PO Alvarado took the car key in total disregard to police procedure and to Plaintiffs rights.

72. They did not brief Plaintiff about the reason for the stop, search, or seizure.

73. No summons was issued - they walked back to the un-marked car - drove off along with the above-mentioned NYPD police van. The encounter ended at about 2:01 a.m.



Image taken from dash cam (clock on dashcam is one hour ahead): Un-marked policecar can be seen in the front of the NYPD police van.



Image taken from dash cam: A close up of the license plate on the NYPD police van, the picture looks blurry but the numbers on the license plate appears to read 8684

74. Plaintiff worried Defendant police officers' purpose was to seek retaliation for past encounters he had with their colleagues. He feared the Defendant police officers would plant a gun or drugs inside the car/trunk or shoot him.

75. For a moment, He thought the policemen were burglars disguised as NYPD police officers, because they did not check the status of His DL, car insurance id, vehicle registration and by their conduct.

76. The Defendant police officers conduct was prejudicial to good order, under information and belief they maliciously intruded unto Plaintiff, and with no probable cause treated him as a "potential suspect", Defendant police officers did not follow procedure as given to them in the NYPD P.G., 203-10(5) "public contact - prohibited conduct", NYPD P.G. 212-11 "Investigative encounters: requests for information, common law right of inquiry level 3 stops", NYPD P.G. 203-25(3)(4)(5) "Department policy prohibiting racial profiling and bias-based policing", and Section 14-151 of the New York City Administrative Code.

77. In fact, on May 12, 2021, at about two o'clock in the afternoon, The NYPD 44th Precinct, Field Intelligence Supervisor, Sergeant Paul Negersmith communicated by telephone to Plaintiff the defendant police officers were disciplined for their conduct, however, He did not disclose the extent of their punishment. Consequently, as a direct and proximate cause of Defendant police officers conduct Plaintiff has sustained physical, psychological, and emotional trauma.

78. Some of the defendant police officers observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their colleagues from acting unjustifiably by searching; seizing;

(*de facto*) arresting; unlawfully detaining or imprisoning; depriving Him His right to the equal protections of the law; malicious conduct towards Plaintiff.

79. The unlawful, search, seizure, (*de facto*) arrest and imprisonment, denial of the equal protections of the law, and malicious conduct to Plaintiff by the defendant police officers caused Plaintiff to sustain physical, psychological, and emotional trauma.

80. Under information and belief there are three civil action cases against PO *Andrew T. Alvarado*. 1.) Case No. 024408/2020; 2.) Case No. 032442/2020E; 3.) Case No. 812214/2021E. His service started in the year 2017, and so far, He has numerous civilian complaints; He re-trained twice for abuse of authority and search of premise.

81. Under information and belief PO *Scott J. Smith* was named in two civil action cases, both cases are settled, 1.) Case No. 033850/2018E and 2.) Case No. 031368/2019E.

FIRST CAUSE OF ACTION

Violation of Plaintiff's fourth and Fourteenth Amendment Rights

82. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. The individually named police officer defendants while acting in concert and within the scope of their authority, under information and belief engaged in racial profiling and biased-based policing when they caused plaintiff to be seized, unlawfully searched, unlawfully arrested, and unlawfully imprisoned, detained and searched without reasonable suspicion and/or probable cause, in violation of Plaintiffs right to be free of an unreasonable search and seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty, property, and equal protections of the laws under the Fourteenth Amendment to the Constitution of the United States.

84. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological trauma.

SECOND CAUSE OF ACTION

Unlawful arrest and Unlawful imprisonment.

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The acts and conduct of the defendants constituted an unlawful (*de facto*) arrest and unlawful imprisonment under the law of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

87. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the law of the State of New York and the United States Constitution.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The CITY, as the employer of the defendant police officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful search.

91. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The illegal approach, pursuit, stop, and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

93. Defendants lacked probable cause to search Plaintiff.

94. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. The CITY, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

97. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights The right to not be compelled to be a witness against himself/deprived of life, liberty, and property.

98. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. Defendants, individually and collectively, under information and belief, knew that during a "Request for Information/Level 1

Encounter," giving innocuous answers does not escalate the encounter, but providing false information may give rise to founded suspicion, and during a Level 2 encounter, force may not be used, the person is free to refuse to answer questions, and is free to leave. Refusal to answer questions or walking away does not raise the level of suspicion. The officer may not create a situation (either by words or actions) where a reasonable person would not feel free to walk away". NYPD P.G. 212-11, "Investigative encounters: requests for information, common law right of inquiry and level 3 stops": common law right of inquiry (level 2 encounter).

100. Defendant police officers created a situation by their actions and words, they punished Plaintiff because He did not answer an accusatory question, placed Plaintiff under (*de facto*) arrest; He did not feel free to leave, in fact, Plaintiff was not free to leave.

101. Defendant police officers in total disregard to procedure without voluntary consent performed a search and used excessive force when they took the car key from out of the Plaintiff possession to search the car trunk in front of the BRONX CRIMINAL COURT BUILDING.

102. In punishing or creating a situation against plaintiff CASH-BEY, and in the arresting or searching with respect thereto, defendant police officers violated plaintiffs constitutional right to remain silent and not be compelled to be a witness against himself under the New York State Constitution and under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of life, liberty, property and denial of equal protections of the laws under the Fourteenth Amendment to the United States Constitution.

103. As a result of the foregoing, Plaintiff CASH-BEY, sustained, *inter alia*, loss of the right of liberty property, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

104. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

105. The CITY, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

107. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 106 with the same force and effect as if more fully set forth at length herein.

108. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, Cash-Bey. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiffs statutory and common law rights as guaranteed by

the laws and Constitution of the State of New York.

109. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiffs statutory and common law rights as guaranteed to Plaintiff by the laws and Constitution of the State of New York.

110. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

111. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

112. The CITY, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

114. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

116. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

117. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 116 with the same force and effect as if more fully set forth at length herein.

118. The defendants that did not physically touch Plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

119. Defendants failed to intervene to prevent the unlawful conduct described herein.

120. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

121. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

122. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

123. The CITY, as the employer of the defendant police officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

124. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Malicious intent/Prima facie tort

125. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 124 with the same force and effect as if more fully set forth at length herein.

126. The acts and conduct of the defendant police officers constitute malicious intent under the laws of the United States, State of New York, and New York state common law.

127. Defendant police officers unlawfully seized Plaintiff with no probable cause or reasonable suspicion and with utter disregard to procedure, public safety, community relations, Plaintiffs constitutional rights or protections.

128. There was actual malice and an absence of probable cause or reasonable suspicion for the (*de facto*) arrest, the search against Plaintiff and for applying pressure unto Plaintiff wrist, injuring Plaintiff to take possession of the car.

129. The inventory search and the search of the car trunk in front of the BRONX CRIMINAL COURT BUILDING produced no evidence, Plaintiff was not issued a summons nor did the defendant police officer communicate to him the reason for the aggressive intrusion or encounter.

130. Plaintiff was subjected to a deprivation of liberty and property sufficient to implicate Plaintiffs Fourth Amendment rights.

131. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

132. The CITY, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

133. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINETH CAUSE OF ACTION

Against the NYPD and CITY 42 U.S.C. 1985(3)

134. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 133 with the same force and effect as if more fully set forth at length herein.

135. The NYPD and CITY demonstrated a lack of justification for the unlawful (*de facto*) arrest, search, seizure, questioning, detainment, and emotional distress applied to the Plaintiff by NYPD police officers and there after released him.

136. Under information and belief Cash-Bey was subject to biased-based policing and a search and seizure of his person and belongings, unlawfully detained, and unlawful arrested, all against his will and without his consent by the agents, servants and/or employees of the CITY and NYPD.

137. That the Defendants CITY and NYPD, its agents, servants and employees under information and belief used racial biased-based policing and force without probable cause or reasonable suspicion to believe that Cash-Bey had committed, was committing, was immediately about to commit any crime, offense, violation, or reasonable cause to believe that any criminal activity was afoot when they escalated the level one encounter to a level three "Terry Stop" encounter. The Defendants unlawfully detained Plaintiff and assault and battery when they placed their hands onto him without his consent. Under information and belief, the defendant police officers knew COVID-19 had been classified as a Global Pandemic, yet Plaintiff was ordered to stand outside in cold weather conditions within inches to PO Alvarado who did not wear a face mask, in violation of COVID-19 Emergency Regulations. (*Public Health Law, Sections 201, 206 and 225 and Executive order 202.14*) NYSCRR part 66 Section 66-3.2 - Face-coverings. The Defendants were disrespectful and reckless when the agents, servants and/or employees of the CITY or NYPD used force against Plaintiff and searched the trunk of the car he drove, without probable cause or reasonable suspicion and against the Plaintiff will. The City and NYPD continue to engage in a practice implemented and continue to enforce, encourage, and sanction policies, practices and/or customs that result in a pattern and practice of unconstitutional stops, searches, seizures, questioning, false arrests of innocent individuals.

138. Through the actions described above the NYPD and CITY have acted knowingly intentionally maliciously and/or with willful, wanton, and reckless disregard for Cash-Bey Federal and State protected civil rights.

139. The NYPD's and CITY's widespread constitutional abuses have flourished as a result of, directly and proximately caused by ongoing pattern, practices, conspiracy, policies and/or customs devised, implemented, and enforced by the NYPD.

140. The NYPD and CITY knew or should have known that their actions as described above were in violation of law.

141. Under information and belief, PO Alvarado has numerous civil complaints against him, additionally, He was re- trained twice and less than one month before this instant case accrued, PO Alvarado was served with process, (see 032442/2020E). Under information and belief, there has been civilian complaints filed against PO Smith, and He was a named defendant in two civil action cases.

142. That as a proximate/direct/result of the actions of the CITY or NYPD, its agents, servants and/or employees, Cash-Bey suffered serious emotional and bodily injuries and damage for which He may be required to seek medical care and treatment in the future.

143. Cash-Bey suffered serious emotional injuries, stress upon his physical system psychological and/or emotional injury and anxiety, and damages, the full extent of which is not known at this

time, for which He was required to and will be required to seek health care in the future.

144. The Plaintiff seeks compensatory damages as authorized and permitted to the highest extent of the Law.

TENTH CAUSE OF ACTION
AGAINST THE NYPD AND CITY OF NEW YORK.

145. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 144 with the same force and effect as if more fully set forth at length herein.

146. The Fourth Amendment of the United States Constitution and the law of NEW YORK prohibits police officers from conducting stops without probable cause or a reasonable, articulable suspicion of criminal conduct, no search, seizures, or arrest persons without probable cause.

147. The NYPD has engaged in pervasive, unconstitutional practices which are a direct and proximate result of policies, practices and/or customs devised implemented enforced and sanctioned by the CITY with the knowledge that such policies practices and customs would lead to violations of the Fourth and Fourteenth Amendments.

148. These practices, policies and customs include but are not limited to failing to properly screen, train, and supervise NYPD officers, failing to adequately monitor and discipline NYPD officers and encouraging and sanctioning and failing to rectify the NYPD's custom and practices of unlawful stops searches seizures and arrests.

149. That the NYPD and CITY having knowledge that the work of the NYPD demands extensive training, superior judgment and close supervision, the City failed to properly screen, train and supervise NYPD officers, including supervisors concerning the legal and factual basis for conducting stops, searches, seizures and or arrests, knowing that such failures would result in Constitutional violations, such as in the case at bar.

150. That the NYPD has engaged in widespread abuses that are directly and proximately the result of the failure of CITY to properly and adequately monitor and to take necessary corrective actions against NYPD officers who engage in, encourage, or conceal these unconstitutional practices, to take sufficient corrective, disciplinary and remedial action to combat the so called "blue wall of silence", wherein NYPD officers conceal on a consistent basis police misconduct or fail and refused to report same.

151. The NYPD, the CITY OF NEW YORK, and NYPD Officers actions constitute constitutional abuses, have acted with deliberate indifference to the constitutional rights of the Plaintiff in violation of the Fourth Amendment.

152. The NYPD and CITY'S actions constitute constitutional abuses and violations which were and are directly and proximately caused by the policies, practices and customs implemented enforced and encouraged by the NYPD and CITY, and have acted with deliberate indifference to the constitutional rights of the Plaintiff.

153. The NYPD has acted with deliberate indifference to the constitutional rights of those who would come into contact with the NYPD officers by a) inadequately monitoring NYPD officers and their practices related to crime enforcement, failing to sufficiently discipline NYPD officers who engage in constitutional abuses and encouraging, sanctioning, and failing to ratify the NYPD's

unconstitutional practices, that responding officers did not inquire into the factual basis for arrests and detentions or whether there were any objective facts which could establish probable cause to arrest or search the individual, but rather has a policy, practice and/or custom of relying on conclusions made rather than inquiring into whether there are facts now which establish that probable cause to arrest existed, with a deliberate indifference by routinely arresting or detaining individuals without knowing whether they actually have probable cause to arrest.

154. As a direct and proximate cause of the CITY'S and NYPD's policies practices and/or customs the plaintiff was subject to an unconstitutional search, seizure, questioning, unlawful detainment, unlawful imprisonment, unlawful arrests by NYPD officers.

155. The NYPD and CITY have acted with a deliberate indifference to the Plaintiff's Fourth and Fourteenth Amendment rights.

156. The NYPD and CITY of New York having acted under color of law to deprive the Plaintiff of his rights under the Fourth Amendment, which prohibits the deprivation under color of State Law of the rights secured under the United States Constitution.

157. The policies of the NYPD and CITY has subjected the Plaintiff to a stop, search, seizure, and unlawful (*de facto*) arrest without any reasonable articulable suspicion of criminality or probable cause.

158. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Unlawful Arrest, Unlawful Detention, and deprivation of equal protections of the laws Under

U.S.C § 1985(3) Against Individual Defendants.

159. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 158 with the same force and effect as if more fully set forth at length herein.

160. At all relevant times, the Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, searching, seizing, detaining, and imprisoning Plaintiff.

161. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and search of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

162. At all relevant times, Defendants acted forcibly in apprehending, arresting, seizing, and searching Plaintiff.

163. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein before alleged.

TWELTH CAUSE OF ACTION**Assault and Battery Under New York State Law.**

164. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 163 with the same force and effect as if more fully set forth at length herein.

165. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

166. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent or justification.

167. Due to the intentional, willful, and unlawful acts of Defendants, Plaintiff suffered damages.

168. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

169. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION**Excessive Force Under 42 U.S.C. § 1983 Against Individual Defendants**

170. Plaintiff realleges and reavers paragraphs 1 through 169 of this Complaint as if fully set forth herein.

171. The Defendants violated Plaintiffs rights under the Fourth and Fourteenth Amendments, the defendant police officers used unreasonable force and against Plaintiff's will, PO Alvarado grabbed and squeezed the Plaintiff wrist, subsequently, PO Alvarado took possession of the Plaintiff property and searched it.

172. The Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him.

173. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTEENTH CAUSE OF ACTION**Municipal "Monell" Liability Under 42 U.S.C. § 1983 Against Defendant City**

174. Plaintiff realleges and reavers Paragraphs 1 through 173 of this Complaint as if fully set forth herein.

175. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to be free from illegal searches and seizures.

176. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a

supervising policy maker must have been aware of.

177. Defendant City's policymakers failed to provide adequate training or supervision to subordinates to such an extent that it amounts to deliberate indifference to the rights of those who come into contact with Defendant City's employees.

178. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

179. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein before alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiff in an amount to be determined by a jury for each of Plaintiffs causes of action.
- b) Awarding Plaintiff punitive damages in an amount to be determined by a jury.
- c) Awarding Plaintiff compensatory damages in an amount to be determined by a jury.
- d) Awarding Plaintiff reasonable fees and costs for filing this action; and
- e) Granting such other and further relief as this Court deems just and proper.

180. Without pleading punitive damages as a separate cause of action, plaintiff hereby puts defendant on notice that its acts and omissions, which were the proximate cause of the above-described occurrence, were of such an unjustifiable, willful and wanton nature, and so exhibited an indifference to and conscious gross disregard for the health, safety and welfare of the public at large and plaintiff in particular, such that plaintiff shall request that a judgment punitive damages be entered against defendant, so as to punish defendant and deter similar conduct on the part of others.

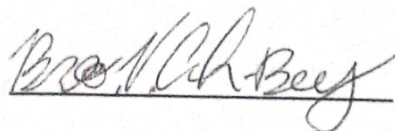
JURY DEMAND

181. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

178. **WHEREFORE**, plaintiff *BROTHER V. CASH-BEY* demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable fees.

Dated: New York, New York
February 14, 2022



Brother V. Cash-Bey

Pro se Litigant

79-81 Main ST. # 1072

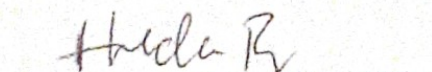
YONKERS, NEW YORK 10701

347-541-8019

PLAINTIFF VERIFICATION

Brother V. Cash-Bey, being duly affirmed, states that He is the plaintiff in this action and that the foregoing complaint is true to his own knowledge, except as to matters herein stated to be alleged on information and belief and as to those matters, he believes to be true.


Brother V. Cash-Bey


NOTARY PUBLIC

